

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JAHMELLA BARKSDALE, ANTHONY BARKSDALE,
and SAKINA GRAVES

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER ANGEL
MELENDEZ, Shield No. 03898, DETECTIVE ANGUS,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Plaintiff designates New York
County as the place of trial.

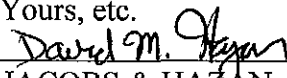
Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 5, 2013

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER ANGEL MELENDEZ, Shield No. 03898, 1 Police Plaza, Room
1200, NY, NY
DETECTIVE ANGUS, 1 POLICE PLAZA, ROOM 1200, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JAHMELLA BARKSDALE, ANTHONY BARKSDALE,
and SAKINA GRAVES

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER ANGEL
MELENDEZ, Shield No. 03898, DETECTIVE ANGUS,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.

----- X
Plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA
GRAVES, by their attorneys, Jacobs & Hazan, LLP, as and for their Verified Complaint herein,
allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 3, 2011, at approximately 5:00 a.m., plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES, while lawfully inside of their apartment located at 55 West 129th Street, New York, New York, were subject to an unlawful search, detention, false imprisonment and false arrest by the defendant New York City police officers. Thereafter, plaintiffs were subsequently also subject to a malicious prosecution by the defendant New York City Police Officers. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of and maliciously prosecuted plaintiffs in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JAHMELLA BARKSDALE is a resident of the County of New York, State of New York.

3. Plaintiff ANTHONY BARKSDALE is a resident of the County of New York, State of New York.

4. Plaintiff SAKINA GRAVES is a resident of the County of New York, State of New York

5. POLICE OFFICER ANGEL MELENDEZ, Shield No. 03898, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. POLICE OFFICER ANGEL MELENDEZ, Shield No. 03898, is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.

7. POLICE OFFICER ANGEL MELENDEZ, Shield No. 03898, is being sued in his individual and official capacities.

8. DETECTIVE ANGUS, is and is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. DETECTIVE ANGUS is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.

10. DETECTIVE ANGUS is being sued in his individual and official capacities

11. NEW YORK CITY POLICE OFFICERS JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

12. Police Officers John Does #1-10 are being sued in their individual and official capacities.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiffs sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On November 3, 2011, at approximately 5:00 a.m., plaintiffs JAHMELLA BARKSDALE, ANONTHY BARKSDALE, and SAKINA GRAVES were lawfully inside of their apartment, located at 55 West 129th Street, Apartment 6C, New York, New York.

19. On November 3, 2011, at approximately 5:00 a.m., defendant New York City Police Officers broke down the front door to plaintiffs' apartment to arrest non-party Shakar Barksdale pursuant to a purported arrest warrant.

20. At the time that the defendant Police Officers broke down the door and entered the apartment, Shakar Barksdale was sleeping on the living room couch.

21. Upon entering the apartment, the defendant police officers immediately saw Shakar Barksdale in the first room they entered, the living room.

22. The defendant police officers had no justifiable legal basis to search plaintiffs' apartment further, since they immediately located Shakar Barksdale upon entering the apartment.

23. The defendant police officers, without probable cause or legal justification, handcuffed plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES.

24. The defendant police officers then searched Shakar Barksdale's bedroom, without a search warrant, cause or legal justification.

25. Upon information and belief, the defendant police officers searched inside of drawers, a suitcase, and other areas in Shakar Barksdale's bedroom.

26. Upon information and belief, the officers located a paintball gun inside of a suitcase located in Shakar Barksdale's bedroom.

27. It was not reasonable for any of the NYPD officers at plaintiffs' apartment to believe the paintball gun was an imitation weapon, nor was it reasonable for the officers to believe the paintball gun belonged to anyone other than Shakar Barksdale in the apartment.

28. At no time did defendants discover any illegal drugs, weapons, or contraband in the possession, custody, or control of plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, or SAKINA GRAVES, nor did they have reason to believe plaintiffs committed a crime.

29. Defendants unlawfully handcuffed and arrested plaintiffs, placed them in the back of an NYPD vehicle, and transported them to the 25th precinct for arrest processing.

30. After a few hours at the 25th precinct, plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES were transported to Manhattan Central Booking.

31. The defendants communicated incomplete, fabricated, false, and misleading information to the New York County District Attorney's office regarding the bases for their arrest of plaintiffs.

32. After many hours at Manhattan Central Booking, at approximately 2 p.m. on November 4, 2011, Plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES were arraigned and charged with crimes they did not commit based upon the false and misleading information provided to the District Attorney's office by defendants, and then released from custody.

33. The unlawful search, false arrest, false imprisonment, and malicious prosecution of plaintiff JAHMELLA BARKSDALE by the individually named defendants caused plaintiff to sustain physical, economic, psychological and emotional trauma.

34. At the time of the arrest, Plaintiff JAHMELLA BARKSDALE was employed by the New York City Department of Education.

35. When Plaintiff JAHMELLA BARKSDALE was arrested, the New York City Department of Education was notified of her arrest, and suspended her without pay.

36. The suspension from the New York Department of Education lasted approximately one month and plaintiff JAHMELLA BARKSDALE suffered a loss of approximately \$1,800 of salary during that period.

37. The unlawful search, false arrest, false imprisonment, and malicious prosecution of Plaintiff ANTHONY BARKSDALE by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

38. At the time of the arrest, Plaintiff ANTHONY BARKSDALE was on parole.

39. As a result of the arrest, Plaintiff ANTHONY BARKSDALE suffered severe emotional and psychological damages out of fear that the false arrest would cause problems with his parole officer and might even cause his parole to be revoked.

40. The unlawful search, false arrest, false imprisonment, and malicious prosecution of plaintiff SAKINA GRAVES by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

41. As a result of the illegal search of their apartment, plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES suffered emotional and psychological damages, as well as several hundred dollars in property damage each, as the defendant police officers ransacked the apartment and damaged plaintiffs' property.

42. Plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES were each required to appear in criminal court approximately 4 times before the false charges against them were dismissed.

43. On March 6, 2012, the charges against Plaintiff ANTHONY BARKSDALE were dismissed on motion of the District Attorney.

44. On March 6, 2012, the charges against Plaintiff JAHMELLA BARKSDALE were dismissed on motion of the District Attorney.

45. On May 23, 2012, the charges against Plaintiff SAKINA GRAVES were dismissed on motion of the District Attorney.

46. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally arrest all individuals found within an apartment after executing a search warrant, regardless of whether an individual has violated any law or ordinance, and without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated or was about to violate any law or ordinance.

47. As a result of defendant City of New York and the New York City Police Department's policy of arresting every individual located within an apartment after executing a warrant, which arrests were made without probable cause or reasonably articulable suspicion that the individuals arrested had violated any law or ordinance or were about to violate any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers arresting individuals after the execution of a search warrant without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

48. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, without probable cause in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

51. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

55. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal search of plaintiffs' apartment by defendants herein was a violation of their common law rights of freedom from unreasonable search.

58. Defendants lacked probable cause to search plaintiffs' apartment.

59. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

61. Plaintiffs repeat and reallege paragraphs 1 through 60 as if fully set forth herein.

62. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, laws of the State of New York and New York State common law.

63. Defendants commenced and continued a criminal proceeding against plaintiffs.

64. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.

65. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

66. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

67. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

68. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

69. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

71. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individuals secreted contraband, evidence, or has a weapon on their person or in their apartment, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

72. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

74. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

75. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were searched, arrested and maliciously prosecuted.

76. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

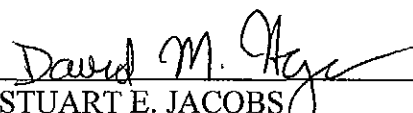
JURY DEMAND

77. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs JAHMELLA BARKSDALE, ANTHONY BARKSDALE, and SAKINA GRAVES demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 5, 2013

By: 
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

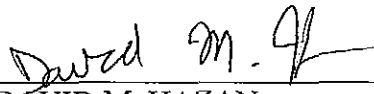
TO: CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICERS JOHN DOES 1-10, 25th Precinct, 120 East 119th Street, New York,
NY, 10035

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

DATED: New York, New York
June 5, 2013



DAVID M. HAZAN